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U.S. Department of State Diplomacy in Action

Iran

Bureau of Democracy, Human Rights, and Labor

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The Islamic Republic of Iran*, with a population of approximately 70 million, is a constitutional, theocratic republic in which Shi'a Muslim clergy dominate the key power structures. Government legitimacy is based on the twin pillars of popular sovereignty--albeit restricted--and the rule of the Supreme Leader of the Islamic Revolution. The current supreme leader, Ayatollah Ali Khamenei, was not directly elected but chosen by a directly-elected body of religious leaders, the Assembly of Experts, in 1989. Khamenei dominated the legislative, executive, and judicial branches of government. He directly controlled the armed forces and indirectly controlled the internal security forces, the judiciary, and other key institutions. The legislative branch is the popularly elected 290-seat Islamic Consultative Assembly, or Majles. An unelected 12-member Guardian Council reviewed all legislation passed by the Majles for adherence to Islamic and constitutional principles and also screened presidential and Majles candidates for eligibility. In 2005 hardline conservative Mahmoud Ahmadi-Nejad won the presidency in an election widely viewed by the international community as neither free nor fair. The civilian authorities did not maintain fully effective control of the security forces.

The government's poor human rights record worsened, and it continued to commit numerous, serious abuses. The government severely limited citizens' right to change their government peacefully through free and fair elections. There were reports of unjust executions after unfair trials. Security forces committed acts of politically motivated abductions; torture and severe officially-sanctioned punishments, including death by stoning; amputation; flogging; and excessive use of force against and imprisonment of demonstrators. Vigilante groups with ties to the government committed acts of violence. Prison conditions remained poor. Security forces arbitrarily arrested and detained individuals and held political prisoners and women's rights activists. There was a lack of judicial independence and of fair public trials. The government severely restricted civil liberties, including freedoms of speech, press, assembly, association, movement, and privacy. The government placed severe restrictions on freedom of religion. Official corruption and a lack of government transparency persisted. Violence and legal and societal discrimination against women, ethnic and religious minorities, and homosexuals; trafficking in persons; and incitement to anti-Semitism remained problems. The government severely restricted workers' rights, including freedom of association and the right to organize and bargain collectively, and child labor remained a serious problem. On December 18, for the fifth consecutive year, the UN General Assembly adopted a resolution expressing "deep concern at ongoing systematic violations of human rights."

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including

a. Arbitrary or Unlawful Deprivation of Life

There were reports that the government and its agents committed arbitrary or unlawful killings.

Baluchi groups in the southeastern province of Sistan va Baluchestan alleged numerous executions during the year after reportedly unfair trials for attacks against government officials. A September Amnesty International (AI) report estimated that authorities executed at least 50 Baluchis since the beginning of the year, almost all following the February 14 bombing in Zahedan of a bus carrying members of the Islamic Revolutionary Guard Corps (IRGC), which killed 11 IRGC members. On February 15, the militant opposition group Jundallah claimed responsibility for the attack. Many of those executed following the bombing made televised "confessions" of responsibility, which Baluchi groups alleged were extracted under torture. According to AI, Baluchi groups alleged that authorities sought to dispel the appearance of ethnic targeting by taking Baluchis to other provinces to execute them after human rights groups drew attention to the rise in executions of Baluchis.

On June 13, according to AI, Vahid Mir Baluchzahi was found dead in Zahedan, Sistan va Baluchestan province, after going missing on February 14, the same day the bus bombing killed 11 IRGC members in the same province. At year's end the government had not initiated an investigation.

During the year the government executed at least 11 Ahvazi Arabs in Khuzestan province in connection with bombings in that province in 2005 and 2006. NGOs and human rights groups outside the country condemned the executions, stating that the accused did not receive fair trials. On January 10, three UN independent experts released a joint statement condemning the executions. Philip Alston, the UN Special Rapporteur (UNSR) on extrajudicial, summary, or arbitrary executions; Leandro Despouy, the UNSR on the independence of judges and lawyers; and Manfred Nowak, the UNSR on torture, jointly called on the government to halt the imminent executions of seven Ahvazi Arabs and grant them fair and public hearings. The UNSRs alleged that authorities used torture to extract the confessions of the accused, and that defense lawyers were not allowed access to the accused during trial and were themselves threatened with charges of "acting against national security." It was not known if all seven were executed at year's end.

During the year there were reports of other killings by government forces. For example, on May 16, members of the Law Enforcement Forces (LEF) reportedly shot and killed 11-year-old Roya Sarani, according to eyewitness reports cited by AI. LEF forces reportedly stopped her father's car as he was driving her and her brother home from school and opened fire for unknown reasons. LEF forces also reportedly wounded Roya's brother, Elyas, in the incident.

On October 13, Zahra Bani-Ameri (also known as Zahra Bani-Yaghoub), a 27-year-old female physician, died while in custody in the town of Hamedan. Security forces arrested her and her fiancé in a public park in the city of Hamedan on charges of having an "illegal relationship." The next day, officials informed her family that she committed suicide while in detention.

NGOs and international newspapers estimate that authorities executed approximately 298 individuals during the year following unfair trials. Exiles and human rights monitors alleged that many of those supposedly executed for criminal offenses, such as narcotics trafficking, were political dissidents. The law criminalized dissent and applied the death penalty to offenses such as apostasy, "attempts against the security of the state," "outrage against high-ranking officials", and "insults against the memory of Imam Khomeini and against the Supreme Leader of the Islamic Republic."

The number of public executions increased during the year, including the August 2 public executions of Majid Kavousifar and Hossein Kavousifar, who were convicted of killing a revolutionary court judge in 2005. Many public executions were also broadcast on state television.

The government continued to execute minors and juvenile offenders. On September 17, UN Commissioner for Human Rights Louise Arbour called on the government to end the practice of juvenile executions. According to AI, there were more than 71 juvenile offenders on death row in the country at year's end, and more than 15 have been executed since 2004.

For example, on April 22, authorities executed 20-year-old Syed Mohammad Reza Mousavi in Shiraz for a murder he allegedly committed when he was 16. His family was not notified of the execution and did not see him before it took place. According to Human Rights Watch (HRW), Mousavi was wrongly tried in an adult court instead of the special juvenile court.

On May 22, authorities executed 17-year-old Sa'id Qanbar Zahi in Zahedan, following his televised "confession" of involvement in bombings, carjacking, and murder. HRW reported that his arrest, confession, trial, sentencing, and execution all took place within a few weeks.

On October 17, authorities hanged 18-year-old Hoseyn Gharabagloo for allegedly killing a 20-year-old man in a scuffle when he was 15. Security forces arrested and detained Gharabagloo in 2004, but he escaped detention prior to his April 2005 trial. In November 2006 security forces recaptured Gharabagloo and sentenced him to death. He appealed, but the Supreme Court confirmed his sentence in December 2006.

On December 4, authorities executed Iranian Kurdish juvenile offender Makwan Moloudzadeh, age 20, after what AI reported as a "grossly flawed trial" for allegedly raping three individuals when he was 13. AI noted that the alleged victims withdrew their accusations before Moloudzadeh was convicted and sentenced.

There was a reported case of execution by stoning during the year, despite a judiciary moratorium on the practice. Stoning remained a legal form of punishment. On July 5, officials in the Qazvin province carried out a death sentence by stoning against Jafar Kiani, defying a 2002 moratorium on the practice put in place by Judiciary Chief Ayatollah Shahrudi. According to AI reports, in 1996 authorities convicted Kiani and his partner, Mokarrameh Ebrahimi, of adultery and sentenced them to death by stoning. On June 20, according to HRW, Judiciary Chief Shahrudi issued a written stay of their execution, scheduled for June 21. Despite the stay, authorities carried out the sentence against Kiani. Shahrudi ordered an investigation of the judge who ordered the sentence, but the results of that investigation remained unknown at year's end. UN Human Rights Commissioner Arbour condemned the execution and called on the government to halt the impending execution of Mokarrameh Ebrahimi. Authorities reportedly suspended Ebrahimi's sentence. On September 30, Secretary of the Human Rights Committee Mohammad Javad Larijani, appointed by Supreme Leader Khamenei, called the stoning a "judicial mistake," but stated his view that the practice of stoning is neither torture nor disproportionate punishment.

On April 18, the Supreme Court overturned the murder convictions of six members of the Basij, a paramilitary volunteer force formally connected with the IRGC, for five killings in 2002 on the grounds that the Basij members stated they believed Islam permitted the killings because the individuals were engaged in "morally corrupt" behavior. In 2002 the Basij members reportedly killed the five individuals by stoning, drowning, and burying one person alive. The lower court previously found all six men guilty of murder.

On December 11, according to domestic press reports, the Supreme Court annulled the original verdict of the primary court in the case of the 2003 death of Zahra Kazemi, a dual Iranian-Canadian citizen, and determined it would be reinvestigated. Kazemi, a photojournalist arrested for taking pictures outside Evin Prison during a student-led protest, died in custody in 2003 after security forces tortured her. Authorities admitted that she died as a result of a blow to the head but claimed the death was "unintentional" and acquitted an intelligence officer in 2004. Tehran General Prosecutor, Saeed Mortazavi, was reportedly involved in her death. In June 2006 the Kazemi family filed a civil case against the Iranian government in Canadian courts.

Ayatollah Khomeini's 1989 religious decree calling for the killing of author Salman Rushdie for allegedly blaspheming the Prophet Mohammad in his book "Satanic Verses" remained in effect.

The government took no known steps to resolve the 2004 killing of labor strikers, the killings and disappearances reported in 2001 by the Special Representative for Iran of the Commission on Human Rights, or the killings of members of religious minorities following the revolution.

b. Disappearance

Little reliable information was available regarding the number of disappearances during the year.

The Iranian-American Jewish Federation reported that 11 Jewish men who disappeared in 1994 and 1997 were still missing, but some were reportedly alive, as witnesses claimed they saw some of the men in Evin Prison. The authorities did not provide information on whether the individuals were in custody.

There were reports of politically motivated abductions during the year. Plainclothes officers or security officials reportedly often seized journalists and activists without warning and held them incommunicado in detention centers for several days before permitting them to contact family members.

There was no further information about the 2005 disappearance of a number of evangelical Christians.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution prohibits torture for the purposes of extracting a confession or acquiring information. Despite 2004 legislation banning torture, there were numerous credible reports that security forces and prison personnel tortured detainees and prisoners.

Common methods of abuse in prisons included prolonged solitary confinement with sensory deprivation, beatings, long confinement in contorted positions, kicking detainees with military boots, hanging detainees by the arms and legs, threats of execution if individuals refused to confess, burning with cigarettes, sleep deprivation, and severe and repeated beatings with cables or other instruments on the back and on the soles of the feet. Prisoners also reported beatings on the ears, inducing partial or complete deafness; punching the area around the eyes, leading to partial or complete blindness; and the use of poison to induce illness. HRW reported that security forces physically tortured student activists more than dissident critics from within the system.

There were multiple cases of torture reported during the year.

On January 11, former political prisoner Kianush Sanjari alleged that he was subjected to "white torture," a form of sensory deprivation, while detained at Evin Prison in late 2006. According to a 2004 HRW report, political prisoners in the country used the term to describe prolonged incommunicado solitary confinement.

On June 6, intelligence agents directly supervised by the prison head reportedly attacked and beat political prisoners held in Orumieh prison in the northwest of the country.

On July 24, the families of three student activists arrested in May and June sent an open letter to Judiciary Chief Shahrudi alleging that security forces tortured their sons in section 209 of Evin Prison. According to HRW, the families alleged that security forces subjected the students to beatings with cables and fists, 24-hour interrogation sessions, sleep deprivation, and forced them to remain standing for long periods of time. The families also alleged that the students were detained in cells with convicted criminals and received threats against themselves and their families. Although Judiciary Chief Shahrudi reportedly ordered an investigation into the allegations, the results remained unknown at year's end. According to domestic press reports, on August 20, Tehran general prosecutor Saeed Mortazavi met with the families of the three student activists and warned them not to speak to the press or any officials or political figures. Mortazavi reportedly denied that security forces had tortured the students and transferred them to solitary cells, where they remained in detention at year's end.

The penal code provides for amputation following multiple theft offenses. On February 27, officials in Kermanshah publicly amputated four fingers of F. Hosseini as punishment for multiple theft convictions. On May 13, there were reports of another amputation.

There were no reports during the year of activities by the "special units" (yegan ha-ye vizhe), which have been used in previous years to complement the existing morality police, "Propagation of Virtue and Prohibition of Vice" (Amr be Ma'ruf va Nahi az Monkar), to combat "un-Islamic behavior" and social corruption among the young. In previous years these auxiliaries assisted in enforcing the Islamic Republic's strict rules of moral behavior by chasing and beating persons in the streets for offenses such as listening to music or, in the case of women, wearing makeup or clothing regarded as insufficiently modest or being accompanied by unrelated men.

In December 2006, according to AI, authorities subjected a woman identified as "Parisa" to 99 lashes, a reduction of the original death sentence by stoning, for adultery.

During the year the government did not initiate any investigations into reports of torture or punish those believed to be responsible.

Prison and Detention Center Conditions

Prison conditions were poor. Many prisoners were held in solitary confinement or denied adequate food or medical care to force confessions.

Overcrowding was a significant problem. In March the UK-based International Center for Prison Studies reported that 150,321 prisoners occupied facilities constructed to hold a maximum of 65,000 persons. Of the prisoners currently held in state detention centers, reportedly nearly one quarter were pretrial detainees. In October Prison Organization head Ali Akbar Yasaghi put the number of prisoners at 158,351. There were 130 prisons in the country, with 41 more under construction during the year. There were reports during the year that Judiciary Chief Shahrudi encouraged judges to implement alternative sentencing for lesser crimes, reportedly due in part to prison overcrowding. At year's end, there were no reports on the extent to which this was implemented.

Some prison facilities, including Tehran's Evin Prison, were notorious for cruel and prolonged torture of political opponents of the government. After its 2003 visit, the UN Working Group on Arbitrary Detentions described section 209 of Evin Prison as a "prison within a prison," designed for the "systematic, large-scale use of absolute solitary confinement, frequently for long periods." Authorities also maintained "unofficial" secret prisons and detention centers outside the national prison system, where abuse reportedly occurred.

Human rights activists and domestic press reported cases of political prisoners confined in the same wing as violent felons. There were allegations that the authorities deliberately incarcerated nonviolent offenders with violent offenders, anticipating they would be killed. There were also reports of juvenile offenders being detained with adult offenders.

The government generally granted prison access only to the International Committee of the Red Cross (ICRC), but the ICRC continued to not have access to detainees. On September 11, the government granted foreign journalists a tour of Evin Prison for the second time in two years. According to Agence France Presse, during the visit, the director of Tehran prisons, Sohrab Soleimani, denied that there were political prisoners in Evin Prison but told the journalists that there were 15 prisoners in Evin on "security" charges. In June 2006 the government also allowed a group of foreign and local journalists to tour Evin Prison. Some prisoners who spoke to reporters in 2006 complained that their cases had not come to trial or that they had been awaiting a verdict for months. According to reports from journalists following the two visits, the number of prisoners in Evin Prison is estimated to be between approximately 2,500 and 3,000.

d. Arbitrary Arrest or Detention

The constitution prohibits arbitrary arrest and detention; however, these practices remained common.

Role of the Police and Security Apparatus

Several agencies share responsibility for law enforcement and maintaining order, including the Ministry of Intelligence and Security (MOIS), the Law Enforcement Forces under the interior ministry, and the IRGC. The Basij and various informal groups known as the "Ansar-e Hizballah" (Helpers of the Party of God) were aligned with extreme conservative members of the leadership and acted as vigilantes. The size of the Basij remained disputed; officials cited anywhere from 11 to 20 million, while a 2005 study by a foreign organization claimed there were 90,000 active members and up to 300,000 reservists.

Corruption was a problem in the police forces and revolutionary courts and to a lesser extent in the criminal and civil courts. Civilian authorities did not fully maintain effective control of the security forces. The regular and paramilitary security forces both committed numerous, serious human rights abuses. According to numerous press, NGO, and anecdotal reports throughout the year, the government used plainclothes security agents to intimidate political critics. They were increasingly armed, violent, and well equipped, and they engaged in assault, theft, and illegal seizures and detentions.

Arrest and Detention

The constitution and penal code require warrants or subpoenas for arrests and state that arrested persons must be informed of charges within 24 hours; however, these safeguards rarely occurred in practice. Detainees often went weeks or months without charges or trial, frequently were denied prompt contact with family, and often were denied access to legal representation for prolonged periods. Bail was often set at prohibitively high levels, even for lesser crimes. Detainees and their families were often compelled to submit property deeds in order to post bail. In the period immediately following detention or arrest, many detainees were held incommunicado and denied access to lawyers and family members. In practice there was neither a legal time limit for incommunicado detention nor any judicial means to determine the legality of the detention.

Security forces often did not inform family members of a prisoner's welfare and location. Authorities often denied visits by family members and legal counsel. Prisoners released on bail did not always know how long their property would be retained or when their trials would be held. Families of executed prisoners did not always receive notification of their deaths. Unlike previous years, there were no reports of the government forcing family members to pay to retrieve the body of their relative.

There were numerous reports of arbitrary and false arrests during the year.

For example, on February 21, plainclothes security forces arrested Somaye Bayanat, the wife of political prisoner Ahmed Batebi, without a warrant and detained her at Gorgan women's prison. According to HRW, Bayanat told her family that security forces arrested her in connection with a group of doctors with whom authorities alleged she worked, and she faced criminal charges of forging medical documents and performing illegal abortions. According to HRW, her family did not believe the allegations, as they were not aware of any such group, and Bayanat was a dentist. At year's end, Bayanat remained in detention.

On May 8, security officials arrested an Iranian-American peace activist, detained him at Evin Prison, and accused him of espionage. On September 25, officials released him and did not file formal charges. On October 8, he left the country.

Also on May 8, an Iranian-American scholar was arrested in Tehran and detained in Evin Prison following months of hours-long daily interrogations by officials from the Ministry of Intelligence. Authorities charged her with "acting against national security," "propaganda against the system," and espionage. In December 2006 unknown assailants took her passport from her at knifepoint on her way to the airport. After she applied for a new passport, intelligence officials interrogated her for several weeks concerning her work with a foreign think tank. On August 21, security forces released her, and on September 4, she left the country.

On May 11, security forces arrested another Iranian-American scholar at his home in Tehran and detained him in Evin Prison. He also faced charges of "acting against national security," reportedly in connection with his work for a foreign NGO. In July the government aired televised footage of the supposed confessions of him and the other Iranian-American scholar, splicing in footage of the "color revolutions" of former Soviet countries. On September 19, he was released on bail.

In September 2006, according to AI, at least nine Azeri Iranians were arrested following demonstrations calling for a school boycott in the northwest. Azeri Iranians were protesting for their constitutional right to use the Azeri language in schools. At year's end, it was not clear whether they had been released.

Adherents of the Baha'i faith continued to face arbitrary arrest and detention.

In recent years the government used house arrest to restrict the movements and ability to communicate of senior Shi'a religious leaders whose views regarding political and governance issues were at variance with the ruling orthodoxy; however, there were no new instances of this practice publicly reported during the year.

Amnesty

According to domestic press, the government pardoned or commuted the sentences of more than 5,600 prisoners during the year to mark Muslim and national holidays.

e. Denial of Fair Public Trial

The constitution provides that the judiciary is "an independent power"; however, in practice the court system was subject to government and religious influence. After the 1979 revolution, the judicial system was revised to conform to an Islamic canon based on the Koran, "Sunna" (the traditions of the Prophet), and other Islamic sources. The constitution provides that the head of the judiciary shall be a cleric chosen by the supreme leader. The head of the Supreme Court and prosecutor-general also must be clerics. Women were barred from serving as certain types of judges.

There are several court systems. The two most active are the traditional courts, which adjudicate civil and criminal offenses, and the Islamic revolutionary courts. The latter try offenses viewed as potentially threatening to the Islamic Republic, including threats to internal or external security, narcotics and economic crimes, and official corruption. A special clerical court examines alleged transgressions within the clerical establishment, and a military court investigates crimes connected with military or security duties. A press court hears complaints against publishers, editors, and writers. The Supreme Court has review authority over some cases, including appeals of death sentences.

Human rights groups reported that the judiciary suppressed political dissent and in practice violated due process rights at every level, including having the right to be promptly charged; having access to legal counsel; being tried before a competent, independent, and impartial court in a public hearing; and having the right of appeal. Detainees were often not informed of their legal status. Numerous observers considered Tehran Public Prosecutor Saeed Mortazavi the most notorious persecutor of political dissidents and critics.

According to the civil code, persons under 18 years of age may be prosecuted for crimes as adults, without special procedures, and may be imprisoned with adults. The age of criminal responsibility is set at 15 years for males and nine years for females. As a party to the International Covenant on Civil and Political Rights and the Convention on the Rights of the Child, the country is obligated not to execute persons for crimes committed when they were younger than 18. However, during the year the government reportedly tried and executed at least five persons who committed crimes while under the age of 18.

Sina Paymard was to be executed for crimes he committed before the age of 18. He was released permanently in mid-December.

According to a June 26 AI report, during the year 71 juveniles were on death row. According to the law, persons under 18 should be tried in a special juvenile court, but there were reports during the year of juveniles being tried in adult courts.

The government also continued to sentence individuals to execution after reportedly unfair trials. During the year six Ahvazi Arabs were scheduled for execution after trials not considered fair, one of whom was granted refugee status by UN High Commissioner for Refugees (UNHCR).

The UN Committee on the Rights of the Child urged the country in January 2005 to suspend execution of juvenile offenders.

Trial Procedures

Many aspects of the prerevolutionary judicial system survive in the civil and criminal courts. For example, in theory defendants have the right to a public trial, a lawyer of their choice, and right of appeal. However, these rights were not respected in practice. Panels of judges adjudicate trials. There is no jury system in the civil and criminal courts. In the press court, a council of 11 persons specifically selected by the court adjudicates the case. If postrevolutionary statutes do not address a situation, the government advises judges to give precedence to their knowledge and interpretation of Islamic law.

According to the law, defendants are entitled to a presumption of innocence, but this often does not occur in practice. Trials are supposed to be open to the public; however, frequently they are closed and defendants often were not given access to a lawyer. The right to appeal is often denied. In practice, defendants are often denied access to legal representation until initial investigations are completed and charges are brought; the period of initial investigation often lasted weeks or months.

"Confessions" were often reportedly coerced during investigations. There were also reports during the year that people who were not detained but summoned for interrogation by security or judiciary officials were threatened with repercussions--inferring either detention or charges--if they sought legal representation.

UN representatives, including UNSRs, the UN Working Group on Arbitrary Detention, and independent human rights organizations noted the absence of procedural safeguards in criminal trials.

Numerous human rights groups condemned trials in the revolutionary courts for their disregard of international standards of fairness. Revolutionary court judges were chosen in part due to their ideological commitment to the system. Pretrial detention often was prolonged, and defendants lacked access to attorneys. Authorities often charged individuals with relatively undefined crimes, such as "anti-revolutionary behavior," "moral corruption," and "siding with global arrogance." Defendants did not have the right to confront their accusers. Secret or summary trials of only five minutes' duration occurred frequently. Other trials were deliberately designed to publicize a coerced confession, and there were allegations of corruption.

The legitimacy of the special clerical court system continued to be subject to debate. The clerical courts, which investigate offenses and crimes committed by clerics and which are overseen directly by the supreme leader, are not provided for in the constitution and operated outside the domain of the judiciary. According to an AI report during the year, defendants could only be represented by clerics nominated by the court, who are not required to be legally qualified. AI reported that in some cases the defendant was unable to find a person among the nominated clerics willing to act as defense counsel and was tried without legal representation. In particular, critics alleged clerical courts were used to prosecute clerics for expressing controversial ideas and participating in activities outside the sphere of religion, such as journalism or reformist political activities.

Political Prisoners and Detainees

No accurate estimates were available regarding the number of citizens imprisoned for their political beliefs. In 2003 the UN Special Representative for the Promotion and Protection of the Right to Freedom of Expression and Opinion estimated the number to be in the hundreds. Although there were few details, the government reportedly arrested, convicted, and executed persons on questionable criminal charges, including drug trafficking, when their actual "offenses" were political. The government charged members of religious minorities with crimes such as "confronting the regime" and apostasy and conducted trials in these cases in the same manner as threats to national security.

Political prisoners occasionally were given suspended sentences or released for short or extended furloughs prior to completion of their sentences but could be ordered back to prison at any time. These suspended sentences were often used to silence and intimidate individuals. The government also controlled political activists by holding a file in the courts that could be opened at any time and attempted to intimidate them by calling them in repeatedly for questioning.

Political prisoners were routinely held in solitary confinement for extended periods of time, and denied due process and access to legal representation. Political prisoners were also at greater risk of torture and abuse while in detention. The government did not permit access by international humanitarian organizations.

There were reports that the government held some persons in prison for years charged with sympathizing with outlawed groups, such as the terrorist organization, the Mujahedin-e-Khalq (MEK).

On August 18, security forces again detained Azeri human rights lawyer Saleh Kamrani and did not inform his family of his whereabouts until August 21. At year's end, there was no information about any charges brought against him, and he remained detained in Evin Prison. Authorities previously arrested Kamrani in June 2006 and sentenced him to one year's imprisonment for "propaganda against the system." The sentence was suspended for five years, and he was released in September 2006.

On September 9, security forces arrested political activist Abbas Khorsandi at his home in Firuzkuh, Tehran province and detained him in Evin Prison. He was previously imprisoned in 2005. No known charges have been filed.

Also on September 9, one female and four male activists were arrested. No known charges have been filed and it was unknown where they were being held.

On September 12, officials from the Special Court for the Clergy reportedly arrested Hadi Qabel, a reformist cleric and member of the reformist political group Islamic Iran Participation Front (IIPF), at his home. According to a September AI report, the location of his detention remained unknown. More than 580 activists and academics reportedly released a statement calling for Qabel's release, which according to press descriptions, called Qabel's and other arrests an attempt by the government to create a "suffocating environment" in advance of the 2008 Majles elections. On October 29, authorities released Qabel on bail.

On October 14, security forces arrested human rights lawyer Emadoldin Baghi, head of the Society for the Defense of Prisoner's Rights. Baghi's wife and daughter were also reportedly sentenced on similar charges to three years in prison, suspended for five years. Previously on July 31, authorities sentenced Baghi to three years in prison, according to his lawyer. Authorities charged him with "propaganda against the system" and "assembly and collusion with the aim of committing offenses against the country's national security," his lawyer stated, adding that the charges were based on media interviews Baghi gave about executions in Ahvaz. At year's end, Baghi's health deteriorated after suffering a heart attack. Authorities temporarily treated him at a hospital before returning him to prison.

On November 8, security forces detained Ali Nikunesbati, spokesman for the student group Office for Consolidating Unity. The government did not inform his family of the charges. In July authorities previously arrested and released him on bail for his role in student protests. At year's end he remained detained.

In July 2006 authorities rearrested student activist Ahmad Batebi, who had been released from prison for medical treatment in 2005. Batebi was involved in the 1999 Tehran student protest, and his photo was published in several international news outlets. Subsequently, authorities sentenced Batebi to death in 1999, a sentence that was commuted to 15 years in prison. Batebi reportedly was severely beaten and harshly interrogated while in prison and consequently suffered from health problems. At year's end, Batebi remained imprisoned in Evin Prison.

In October 2006 police arrested dissident cleric Ayatollah Mohammad Kazemeini Boroujerdi at his home, reportedly after he had come under increased pressure from the government to separate religion and politics. According to press reports, more than 70 of his supporters were arrested in September and October 2006. Boroujerdi has reportedly been arrested and imprisoned several times since 1992 and has claimed that he was tortured and threatened with execution. According to AI, all but two of his arrested followers have been released from prison. At year's end Boroujerdi remained in Evin Prison, where he is reportedly in ill health and may not have access to medical care.

In June 2006 security officials arrested Azeri activist Abbas Lisani following a protest demonstration and charged him with "holding rallies against the state system." According to AI, in September 2006 Lisani was sentenced to sixteen months in prison and 50 lashes. According to a press report quoting Lisani's wife, he was transferred from Ardabil prison to a prison in Tabriz to serve the remainder of his sentence. At year's end, he remained in prison.

Civil Judicial Procedures and Remedies

The judiciary was nominally independent from the executive and legislative branches but remained under the influence of executive and religious government authorities. The head of the judiciary was appointed by the supreme leader, who in turn appointed the head of the Supreme Court and the chief public prosecutor. According to the constitution, under the supervision of the head of the judiciary, the Court of Administrative Justice investigates the grievances of citizens with regard to government officials, organs, and statutes. In practice, however, citizens' ability to sue the government was limited. It appeared that citizens were not able to bring lawsuits against the government for civil or human rights violations. Dispute resolution councils are available to settle minor civil and criminal cases through mediation before referral to courts.

Property Restitution

The constitution allows the government to confiscate property acquired either illicitly or in a manner not in conformance with Islamic law. The UNSR on Adequate Housing noted religious minorities, including members of the Baha'i faith, were particularly affected. The UNSR's June 2006 report noted the "abusive use of [the law] is seen as an instrument for confiscating property of individuals as a form of retribution for their political and/or religious beliefs." The report noted documentation of approximately 640 Baha'i properties confiscated since 1980, instances of numerous undocumented cases, and court verdicts declaring confiscation of property from the "evil sect of the Baha'i" legally and religiously justifiable. Rights of members of the Baha'i faith were not recognized under the constitution, and they had no avenue to seek restitution of or compensation for confiscated property.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The constitution states that "reputation, life, property, (and) dwelling(s)" are protected from trespass except as "provided by law;" however, the government routinely infringed on these rights. Security forces monitored the social activities of citizens, entered homes and offices, monitored telephone conversations and internet communications, and opened mail without court authorization. There were widespread reports that the homes and offices of reformist journalists were entered, searched, or ransacked by government agents in an attempt to intimidate them.

Vigilante violence included attacking young persons considered too "un-Islamic" in their dress or activities, invading private homes, abusing unmarried couples, and disrupting concerts. During the year, the government intensified its crackdown on "un-Islamic dress" or "bad hijab." In June, according to deputy police chief Hossein Zolfaghri, the government brought a total of 2,265 cases, against men and women, to the judiciary for trial on the charge of noncompliance with the Islamic dress code. According to a domestic press report, during the year the government warned more than 527,000 persons and arrested more than 20,000 persons, who were then released conditionally. Police denied the use of force in these instances, but there were reports that force was used, including one widely-circulated image of a girl's face covered in blood after being beaten by police for un-Islamic dress. According to press reports, the Tehran police chief said that the girl had "instigated the incident herself."

There were also reports during the year that the Ministry of Intelligence pressured families of political prisoners, banning them from speaking to foreign press and blocking their telephone conversations.

Authorities entered homes to remove television satellite dishes, although the vast majority of satellite dishes in individual homes reportedly continued to operate. In late 2006 there were press reports that the government increased its confiscation of satellite dishes.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The constitution provides for freedom of expression and of the press, except when it is deemed "detrimental to the fundamental principles of Islam or the rights of the public...." In practice the government severely restricted freedom of speech and of the press. Basic legal safeguards for freedom of expression did not exist, and the independent press was subjected to arbitrary enforcement measures by the government, notably the judiciary. Censorship, particularly self-censorship, limited dissemination of information during the year. According to the Tehran-based Association for Advocating Freedom of Press, state pressure on journalists continued to increase after President Ahmadi-Nejad assumed office in 2005. Journalists were frequently threatened and sometimes killed as a consequence of their work.

The penal code states that "anyone who undertakes any form of propaganda against the state" can be imprisoned up to a year; the law does not define "propaganda." The press law forbids censorship but also forbids disseminating information that may damage the Islamic Republic or offend its leaders and religious authorities. It also subjects writers to prosecution for instigating crimes against the state or "insulting" Islam; the latter offense is punishable by death.

On September 30, according to news reports, deputy interior minister and head of Commission 10 on political parties Ali Reza Afshar announced that "publications and other media outlets are forbidden from writing about parties or political groups that have not obtained a license from Commission 10 on political parties." This action follows other reports of government efforts to limit political debate and the spread of information in advance of the 2008 Majles elections. There were similar reports in 2006 that the Supreme National Security Council warned editors-in-chief not to publish political analysis that differed from the country's official policy.

The 1985 press law established the Press Supervisory Board, which was responsible for issuing press licenses and examining complaints filed against publications or individual journalists, editors, or publishers. In certain cases the board referred complaints to the press court for further action, including closure. Its hearings were conducted in public with a jury composed of appointed clerics, government officials, and editors of government-controlled newspapers. The press law also allows government entities to act as complainants against newspapers, and often public officials lodged criminal complaints against reformist newspapers that led to their closures. Offending writers were subjected to lawsuits and fines. Some human rights groups asserted that the increasingly conservative press court assumed responsibility for cases before press supervisory board consideration, often resulting in harsher judgments. Efforts to amend the press laws have not succeeded, although in 2003 parliament passed a law limiting the duration of "temporary" press bans to stop the practice of extending them indefinitely.

On July 7, Minister of Culture and Islamic Guidance Saffar-Harandi warned of a "creeping coup" from the press to overthrow the system. Two days later, the head of the president's public relations office announced the creation within that office of a special team to confront publications critical of the government.

During the year, numerous publishers, editors, and journalists (including those working on Internet sites) were detained, jailed, tortured, and fined, or they were prohibited from publishing their work. The government imposed significant restrictions on press outlets and banned or blocked some publications that were critical of the government.

In its May report, Freedom House called the press climate in the country "not free," noting several newspaper closures and the arrests and intimidation of journalists. The head of the Iranian Journalists Guild Association said that during the Iranian year 1385 (March 2006-2007) the Press Supervisory Board banned more than 20 publications. He called the year a "bad period for the press" and characterized the press environment as "negative and oppressive." Since Mahmoud Ahmadi-Nejad became president in 2005, approximately 42 publications were suspended and 25 printing licenses revoked. In a September open letter, Reporters Without Borders (RSF) accused President Ahmadi-Nejad of an "appalling record of press freedom violations." According to the Committee to Protect Journalists (CPJ), there were at least 12 journalists imprisoned in the country during the year. RSF reported on September 26 that since September 2006, 73 journalists were arrested and at least 20 media outlets were censored.

According to Radio Free Europe/Radio Liberty, on February 27, authorities arrested French-Iranian filmmaker Mehrnoushe Solouki for "intent to commit propaganda against the regime" after she discovered a mass grave outside Tehran in the course of her research on the burial rites of some religious minorities. After one month in Evin Prison, she was released on bail but at year's end was not allowed to leave the country.

On March 26, authorities sentenced economic journalist Ali Farahbakhsh, who wrote for the daily *Sarmayeh* and the banned reformist dailies *Yas-e-now* and *Shargh*, to three years and three months in prison, reportedly on charges of espionage and "stealing from foreigners." The sentence was later reduced to 11 months. In November 2006 security officials arrested Farahbakhsh upon his return from a civil society conference in Thailand. The charges against him are reportedly related to his acceptance of \$2,300 for participating in the conference, which was intended to cover his travel expenses. Farahbakhsh remained in Evin Prison for several months despite a letter from Judiciary Chief Shahrudi ordering his release on bail. On October 9, authorities reportedly conditionally released him, pending an appeal hearing. According to AI, the Association of Iranian Journalists issued an open letter signed by 247 of its members calling attention to flaws in the administration of justice in Farahbakhsh's case.

In late March the Press Supervisory Board revoked the license of bilingual Kurdish and Persian weekly *Payam-e-Kurdistan*. It was not clear why the license was revoked.

On April 12, Tehran University law professor and former Majles deputy from Shiraz Ghassem Sholeh Sadi told an international press outlet in an interview that he had been sentenced to 18 months in prison. The sentence is reportedly in connection with an open letter Sholeh Sadi wrote to the supreme leader in 2002, criticizing some of the actions and policies of the government and its leaders. It was not clear whether he was detained.

On May 28, security forces arrested journalist Said Matinpour of Azeri-language weekly *Yarpagh* and detained him in Evin Prison. According to RSF, there have been no charges filed against him, and he has not been permitted contact with his family or lawyer.

On July 1, Kurdish journalist Mohammad Sadiq Kabudvand was reportedly arrested by plainclothes security forces. It was not clear where he was being detained or whether he was permitted contact with his family or legal counsel. Kabudvand, who was also secretary of the Kurdistan Organization for the Defense of Human Rights, wrote for the now-defunct weekly *Payam Mardom Kordestan*. In September 2006 authorities sentenced him to one year in prison on charges of "inciting the population to rebel against the central state" but according to AI, his current detention was reportedly unconnected to this prison sentence.

On July 3, the general prosecutor ordered the daily *Ham-Mihan* closed. On May 13, authorities permitted the publication to reopen after being closed since 2000; it published for only 42 days before being closed again.

On July 11, the government closed the wire service *Iranian Labor News Agency*, reportedly as a result of its reporting on labor strikes in parts of the country.

On July 16, a revolutionary court in the northwestern city of Marivan sentenced Kurdish journalists Adnan Hassanpour and Abdolvahed "Hiva" Boutimar to death on charges of espionage and "acting against national security." According to RSF, the trials were not public and their lawyers were not permitted to attend. Hassanpour's interviews with foreign media were reportedly cited by the prosecution. According to December domestic press reports, the Supreme Court upheld the death sentence for Hassanpour but overturned the verdict for Boutimar.

On July 31, security forces arrested journalist Farshad Ghorbanpour and detained him in Evin Prison. He was reportedly charged with "spreading lies against the system" and "giving news to Web sites outside the country." He was released on bail on August 27. Authorities reportedly also arrested journalist Masoud Bastani and released him one day later. Bastani was reportedly in Evin Prison for several months in 2005 and 2006.

On August 4, security forces arrested journalist Soheil Asefi and detained him in Evin Prison where he was held in solitary confinement. He was reportedly charged with "publishing false news likely to disturb public opinion." On October 6, authorities released Asefi on bail of \$107,000 (1 billion rials).

On August 6, the general prosecutor ordered to close the last major reformist daily *Shargh*. The ban placed on *Shargh* in September 2006 was lifted on May 14, but the paper was operational for less than three months before being closed again. The government reportedly closed the newspaper in response to a published interview with a writer accused of being a homosexual activist.

On August 11, the government closed the conservative news Web site *Baztab*, although the site continued to operate outside of the country. The government also reportedly filtered the Web site earlier in the year. At year's end, the site was reportedly operating inside the country.

Student groups reported interference with their activities and with student elections and publications. Authorities closed student publications at Amir Kabir University and arrested several students affiliated with the publications in the weeks prior to elections for the Islamic Students Association. Between May 3 and June 6, authorities arrested eight students at Amir Kabir University on charges of "insulting state leaders," "inciting public opinion," and "printing inflammatory and derogatory materials" in student publications, according to HRW. On July 18, authorities released five of the students on bail. The Tehran Revolutionary Court gave the other three, Ahmad Ghassaban, Ehsan Mansouri, and Majid Tavakoli, mandatory jail sentences after finding them guilty of collaborating to "print inflammatory and derogatory materials." The court sentenced Tavakoli to three years in prison, Ghassaban to two-and-a-half years, and Mansouri to two years. At year's end, they were acquitted of the most serious charges, including insulting Islam. On December 19, the judge sentenced them to four months in prison and ordered their release. At year's end, prison authorities refused to release them.

In September Tehran prosecutor general Saeed Mortazavi reportedly met with the editors of four reformist newspapers and warned them not to publish articles about the detained student activists from Amir Kabir University. Mortazavi reportedly showed the editors "evidence" of the charges against the students and also threatened to suspend the newspapers if the editors did not comply. Following the incident, more than 100 journalists reportedly released a joint statement protesting Mortazavi's threats. This follows similar actions in 2006 in which the Ministry of Intelligence and Security and the Ministry of Islamic Culture and Guidance reportedly jointly instructed the semi-official news outlets Iranian Student News Agency and Iranian Labor News Agency not to report on the arrests and prosecution of student activists without coordinating with those ministries.

Foreign journalists faced harassment. The government required foreign correspondents to provide detailed travel plans and proposed stories before receiving visas. They were also required to hire "fixers" inside the country at high cost. Some were denied visas.

The government, through a state-controlled entity called the Voice and Vision Organization, directly controlled and maintained a monopoly over all television and radio broadcasting facilities; programming reflected the government's political and socio-religious ideology. Because newspapers and other print media had a limited circulation outside large cities, radio and television served as the principal news source for many citizens. Satellite dishes that received foreign television broadcasts were forbidden; however, many citizens owned them, particularly the wealthy.

The government periodically increased confiscation of illegal satellite dishes in homes. The government blocked foreign satellite transmissions using powerful jamming signals in the past. Separately, the government ruled private broadcasting illegal; cooperation with private broadcasting was also illegal.

The Ministry of Culture must grant permission to publish any book, and it inspected foreign printed materials prior to their domestic release.

Internet Freedom

The government increased control over the Internet during the year as more citizens used it as a source for news and political debate. According to the May 1 Freedom House report, approximately seven million citizens used the Internet, although the Ministry of Communications reported as many as 16 million users, according to domestic press reports. The same Freedom House report noted that beginning in 2006 the government increasingly targeted the Internet.

All Internet service providers (ISPs) must be approved by the Ministry of Culture and Guidance, and the government used filtering software to block access to some Western Web sites, reportedly including the Web sites of prominent Western news organizations and NGOs. According to the Open Net Initiative (ONI), the government issued framing regulations in November 2006 to systematize control and management of Internet activity. ONI also reported that in January the Ministry of Culture and Guidance issued a notice requiring all owners of Web sites and blogs to register with the government by March 1 and to refrain from posting certain types of content.

In August the government announced that it would launch a new Internet police patrol. According to press reports describing the government announcement, the patrol would investigate suspicious advertisements, fraud, and economic and financial offenses.

In April 2006 the Minister of Communications and Information Technology announced the government's intention to establish a "national Internet," which would improve on the costly monitoring process that required Web site information to exit the country and then return. In October 2006 the government imposed a limit of 128 kilobytes per second on Internet speed and required ISPs to comply with the limit by decreasing Internet service speed to homes and cafes. The new limit made it more difficult to download Internet material and to circumvent government restrictions to access blocked Web sites.

According to RSF, arrests and intimidation of bloggers decreased in 2006, but Internet censorship increased. In 2006 and during the year the government blocked several Web sites dealing with women's issues in the country, and women's groups reportedly launched an online petition to protest Internet filtering. According to press reports, the government claimed to have blocked access to 10 million Internet sites it deemed immoral during the year. A 2005 HRW study listing blocked Internet sites included Farsi-language news sites, some popular sites of Internet writers, the Freedom Movement Party Web site, a Web site promoting the views of Ayatollah Montazeri, several Kurdish Web sites, Web sites dedicated to political prisoners, and a Baha'i Web site.

Academic Freedom and Cultural Events

The government significantly restricted academic freedom. In September 2006 President Ahmadi-Nejad called for the removal of secular and liberal professors from universities. Reports indicated dozens of university professors have been dismissed, forced to retire, or denied sabbaticals abroad since 2006. Student groups reported that the government used a "star" system to rank politically active students — each star denoted a negative mark. Students with three stars were

reportedly banned from university or prevented from registering for upcoming terms. Government informers were common on university campuses. Additionally, there were reports the government maintained a broad network of student informants in Qom's major seminaries who reported teaching counter to official government positions.

The government censored cultural events. In 2005 the minister of Islamic culture and guidance promised more stringent controls on books, cinema, and theater, although he indicated the change would not be immediate. He also warned of greater surveillance of "hundreds" of cultural associations. Culture ministry officials also reportedly cancelled more than 30 concerts, and President Ahmadi-Nejad announced a ban on Western music in December 2005. A September 2006 report by a Western NGO noted that censorship by authorities and a culture of self-censorship strongly inhibited artistic expression in the country.

The government also effectively censored domestic films, since it remained the main source of production funding. Producers were required to submit scripts and film proposals to government officials in advance of funding approval. After President Ahmadi-Nejad assumed office in 2005, the Supreme Cultural Revolution Council announced a ban on movies promoting secularism, feminism, unethical behavior, drug abuse, violence, or alcoholism. Films of some domestic directors were not permitted to be shown in the country.

Admission to universities was politicized; all applicants had to pass "character tests" in which officials eliminated applicants critical of the government's ideology. Some seats in universities continued to be reserved for members of the Basij, regardless of their scores on the national entrance exam. To obtain tenure, professors had to refrain from criticism of the authorities.

b. Freedom of Peaceful Assembly and Association

Freedom of Assembly

The constitution permits assemblies and marches, "provided they do not violate the principles of Islam;" however, in practice the government restricted freedom of assembly and closely monitored gatherings to prevent antigovernment protests. Such gatherings included public entertainment and lectures, student meetings and protests, labor protests, women's gatherings and protests, funeral processions, and Friday prayer gatherings.

Paramilitary organizations such as the Ansar-e Hizballah, a group of vigilantes who seek to enforce their vision of appropriate revolutionary comportment upon society, harassed, beat, and intimidated those who demonstrated publicly for reform. They particularly targeted university students.

The government continued to prohibit and forcibly disperse peaceful demonstrations during the year.

On March 4, days before International Women's Day on March 8, police arrested more than 30 women demonstrating outside a Tehran courthouse, protesting the trials of five women's rights activists charged for peacefully demonstrating in June 2006. All were later released but continued to face harassment by the authorities at year's end.

On March 14, police forces disrupted a peaceful demonstration by teachers protesting outside the legislature for higher wages. Police reportedly arrested dozens of demonstrators. According to labor rights groups, many teachers received heavy suspended sentences for taking part in these protests.

On May 1, security forces arrested 11 workers attending a demonstration in Sanandaj protesting for labor rights. Each was sentenced to 91 days in prison and ten lashes. Two of the organizers of the rally, Sheys Amini and Sedigh Karimi, were sentenced to 30 months in prison by the Sanandaj criminal court.

On August 9, authorities arrested five members of a Tehran bus drivers' syndicate, along with some family members, who were demonstrating outside detained labor leader Mansur Osanloo's house, calling for the release of Osanloo and labor activist Mahmoud Salehi.

On September 25, police reportedly disrupted a peaceful demonstration by workers at a paper factory in Ahvaz who demanded payment of their wages. Police reportedly beat demonstrators, and some required hospitalization.

In late September and early October, police reportedly arrested a number of protesting workers in the western city of Shush, following three days of workers' protests over unpaid wages.

In early December AI reported that security forces arrested between 20 and 30 students, mostly in Tehran but also in other cities. Authorities detained some of the students before protests on December 7, the country's national University Student Day; others were arrested after the demonstrations.

Some participants arrested during the 2006 International Women's Day commemoration remained in prison at year's end.

Freedom of Association

The constitution provides for the establishment of political parties, professional associations, Islamic religious groups, and organizations for recognized religious minorities, provided that such groups do not violate the principles of "freedom, sovereignty, and national unity," or question Islam as the basis of the Islamic Republic; however, the government limited freedom of association in practice.

On April 7, authorities reportedly arrested as many as 45 members of the Hamedan Teachers' Association, some at an association meeting and some at their homes. Judiciary officials stated that the association was a banned organization. Officials confirmed that 30 of the teachers were freed, but 15 remained in detention at year's end.

On November 11, security forces arrested Heshmatollah Tabarzadi, General Secretary of the Democratic Iranian Front, a political party, and transferred him to Evin Prison. At year's end no charges had been filed.

The government's 2002 dissolution of the Freedom Movement, the country's oldest opposition party, remained in effect.

c. Freedom of Religion

The constitution states that the "official religion of Iran is Islam and the doctrine followed is that of Ja'fari (Twelver) Shi'ism." The constitution also states that "other Islamic denominations are to be accorded full respect" and recognizes the country's pre-Islamic religions--Zoroastrians, Christians, and Jews--as "protected" religious minorities. Article 4 of the constitution states that all laws and regulations must be based on Islamic criteria. The government severely restricted freedom of religion in practice, particularly the Baha'i faith.

The central feature of the country's Islamic system was rule by the "religious jurisconsult." Its senior leadership consisted principally of Shi'a clerics, including the supreme leader of the revolution, the head of the judiciary, and members of the Assembly of Experts and the Guardian Council.

During the year, Baha'i students were routinely denied access to university education because of their religion. In 2006, for the first time since 1980, approximately 200 Baha'i students were admitted to universities. However, it was not known if their admission resulted from changed government policy or a change in the use of university application forms. Baha'i groups outside the country reported that most of the students admitted in 2006 were later expelled when their religion became known. On September 20, HRW reported that Baha'i students were denied access to their national matriculation exam scores, which are required for entrance into university. Baha'i groups outside the country also reported a concerted government effort at economic obstruction of Baha'is in the country.

The population is approximately 98 percent Muslim; 89 percent of the population is Shi'a, and 9 percent is Sunni. Baha'i, Christian, Zoroastrian, and Jewish communities constitute approximately 2 percent of the population. There were indications that members of all religious minorities were emigrating at a high rate, although it was unclear if the reasons for emigration

were religious or related to overall poor economic conditions.

The government carefully monitored the statements and views of the country's senior Muslim religious leaders. It restricted the movement of several religious leaders who had been under house arrest for years, and continued to detain at least one dissident cleric, Ayatollah Boroujerdi, during the year. The government pressured all ranking clerics to ensure their teachings confirmed (or at least did not contradict) government policy and positions. During the year, there were at least three assassinations or assassination attempts against Shi'a clerics by unknown assailants in Khuzestan and Sistan va Baluchestan provinces.

Sunni Muslims are the largest religious minority, and the constitution provides them a large degree of religious freedom. Sunni Muslims claimed the government discriminated against them, although it was hard to distinguish whether the cause for discrimination was religious or ethnic since most Sunnis are also ethnic minorities, primarily Arabs, Baluchis, and Kurds. As an example of discrimination, Sunnis cited the lack of a Sunni mosque in Tehran, despite more than a million Sunni inhabitants.

Members of the country's non-Muslim religious minorities, particularly Baha'is, reported imprisonment, harassment, and intimidation based on their religious beliefs.

All religious minorities suffered varying degrees of officially sanctioned discrimination, particularly in employment, education, and housing. In June 2006 the UNSR for Adequate Housing visited the country and reported that rural land, particularly that belonging to minorities, including many Baha'is, was expropriated for government use, and owners were not fairly compensated. With the exception of Baha'is, the government allowed recognized religious minorities to conduct religious education of their adherents, although it restricted this right considerably in some cases, including Mandeans.

Religious minorities were barred from election to a representative body, except for the five Majles seats reserved for recognized religious minorities (two for the Armenian Christians, and one each for the Assyrian Christians, Jews and Zoroastrians), and from holding senior government or military positions, but they were allowed to vote. Although the constitution mandates an Islamic army, members of religious minorities served in the military, although non-Muslim promotions were limited by a military restriction against non-Muslims commanding Muslims. Reportedly non-Muslims can be officers during their mandatory military service but cannot be career military officers.

The legal system previously discriminated against recognized religious minorities in relation to blood money; however, in 2004 the Expediency Council authorized collection of equal blood money for the death of Muslim and non-Muslim men. All women and Baha'i and Sabean-Mandean men remained excluded from the revised ruling. According to the law, Baha'i blood is considered mobah, meaning it can be spilled with impunity.

Inheritance laws favored Muslim family members over non-Muslims. For example, under existing inheritance laws, if a non-Muslim converted to Islam, that person would inherit all family holdings while non-Muslim relatives would receive nothing.

Proselytizing of Muslims by non-Muslims was illegal. The government did not ensure the right of citizens to change or recant their religion. Apostasy, specifically conversion from Islam, was punishable by death, although there were no reported instances of the death penalty being applied for apostasy during the year.

Baha'is were considered apostates because of their claim to a religious revelation subsequent to that of the Prophet Mohammed. The government defined the Baha'i faith as a political "sect" linked to the Pahlavi monarchy and Israel and, therefore, counterrevolutionary. Baha'i organizations outside the country warned that the government intensified a strategy of intimidation against Baha'is. The country's estimated 300,000 to 350,000 Baha'is were not allowed to teach or practice their faith or to maintain links with coreligionists abroad. The government continued to imprison and detain Baha'is based on their religious beliefs. A 2001 Justice Ministry report indicated the existence of a government policy to eventually eliminate the Baha'i community.

In March 2006 the UNSR on Freedom of Religion and Belief expressed concern about allegations that security forces were monitoring and gathering information about the Baha'i community. Baha'i groups reported the government was collecting names of Baha'is across the country, and there was an increase of anti-Baha'i editorials in pro-government newspapers.

Between May 2006 and January, the government reportedly arrested 63 Baha'is. As of November, three remained in prison. The government did not formally charge many of the others but released them after they posted bail. For some, bail was in the form of deeds of property; others gained their release in exchange for personal guarantees or work licenses.

There were also reports of attacks on Baha'is by unidentified assailants, including the killings of two elderly Baha'i women. On February 16, a masked intruder killed an 85-year-old Baha'i woman, Behnam Saltanat Akhzari, in her home. The following day, a masked intruder assaulted a 77-year-old Baha'i woman, Shah Beygom Dehghani, in her home, and she died on March 7.

On January 1, security officials arrested two Baha'i men, Riaz Heravi and Siamak Ebrahimi, and detained them for 20 and 30 days, respectively. No details were available about the reasons for their arrests, although a Baha'i group noted that the two coordinated events for their Baha'i community.

In May 2006 security forces temporarily arrested 54 Baha'is in Shiraz while they were teaching in an educational program for underprivileged children. According to Baha'i organizations outside the country, they had an official permit to conduct such teachings. In August the court orally accused the 54 of "indirectly" teaching the Baha'i faith. The court gave all but three suspended sentences of one year in prison for "forming illegal groups" and "propagating on behalf of groups opposed to the government." The court sentenced the remaining three, Raha Sabet, Sasan Taqva, and Haleh Roohi to four years' imprisonment each: three years for "organizing illegal groups" and one year for "teaching on behalf of groups opposed to the government." They were detained on November 19.

Sufi organizations outside the country previously expressed concern about government repression of their religious practices, and during the year there were arrests in Qom, a center of orthodox Shi'ism, after calls by Shi'a clerics for restrictions on local Sufis.

On May 21, security forces detained Sufi leader Nurali Tabandeh (also known as Majzub Ali Shah) of the Nematollah Gonabadi Sufi order in the northeastern city of Gonabad. Intelligence officials had reportedly warned Tabandeh earlier in the year to leave the city, but he refused. The Nematollah Gonabadi order was reportedly one of the largest Sufi groups in the country. In February 2006 authorities arrested 1,200 Sufi worshippers and closed a Sufi house of worship.

On May 4, 52 Sufis were sentenced to one year in prison, fines, and lashes (ultimately reduced to fines) in connection with the February 2006 incident. Their lawyers, Farshid Yadollahi and Omid Behrouzi, were also sentenced and banned from practicing law for five years.

On November 11, authorities arrested 180 Sufis in the western city of Boroujerd. Members of a Sufi lodge in Boroujerd reportedly attacked a nearby Shi'a mosque after clerics from that mosque called for their lodge to be shut down. Police entered the lodge to make arrests, and violent clashes between the Sufis and police ensued. Parts of the lodge were reportedly destroyed during the clashes. It was not clear what charges may have been brought against the 180 arrested or whether they remained in detention at year's end.

The majority of the approximately 300,000 Christians in the country were ethnic Armenians and Assyro-Chaldeans. Protestant denominations and evangelical churches existed and reported restrictions on their activities. The authorities became particularly vigilant in recent years in curbing proselytizing activities by evangelical Christians. Some unofficial 2004 estimates indicated that there were approximately 100,000 Muslim-born citizens who had converted to Christianity. The UNSR estimated that 15,000 to 20,000 Christians emigrated each year; however, given the continued exodus from the country for economic and social reasons, it was difficult to establish the role religion played in the choice to emigrate.

Societal Abuses and Discrimination

The continuous presence of the country's pre-Islamic, non-Muslim communities, such as Zoroastrians, Jews, Sabean-Mandeans, and Christians, accustomed the population to the participation of non-Muslims in society; however, government actions continued to support elements of society who created a threatening atmosphere for some religious minorities.

Sunni Muslims and Christians encountered societal and religious discrimination and harassment at the local, provincial, and national levels.

There were reports that Mandeans experienced discrimination in the form of pressure to convert to Islam and problems accessing higher education.

There was concern from several groups about the rumored resurgence of the banned Hojjatiyeh Society, a secretive religious-economic group that was founded in 1953 to rid the country of the Baha'i faith in order to hasten the return of the 12th Imam (the Mahdi). Although not a government organization and officially banned, it was believed that many members of the administration were Hojjatiyeh members and were using their offices to advance the society's goals. However, it was unknown what role, if any, the group played in the arrests of numerous Baha'is during the year. Many Baha'i human rights groups and news agencies described the goals of the Hojjatiyeh Society as the eradication of the Baha'is, not just the Baha'i faith. The group's anti-Baha'i orientation reportedly widened to encompass anti-Sunni and anti-Sufi activities as well.

The government's anti-Israel stance, in particular the president's numerous speeches against Israel stating the "Zionist regime" should be eliminated, and the perception among many citizens that Jewish citizens supported Zionism and Israel, created a threatening atmosphere for the community. Since his election in 2005, President Ahmadi-Nejad has publicly questioned the historical validity of the Holocaust and called for the removal of the Jewish state from the Middle East. He continued to make similar statements during the year, stating on June 3 that "the countdown for [Israel's] collapse has begun".

According to the Middle East Research Institute, state TV broadcasted two shows hosting a Holocaust denier or content deemed anti-Semitic. State television also broadcasted "Zero Degree Turn," portraying a young Iranian diplomat's efforts to help European Jews during World War II.

In April, according to local media, the state-run Islamic Republic of Iran Broadcasting (IRIB) television network replied to a 2005 complaint from the sole Jewish member of parliament (MP), who asserted that the IRIB network transmitted anti-Semitic programs. The letter was read in the Majles and stated that its programming was based on "research and documentary evidence" and claimed that IRIB's programming gave more attention to positive Jewish characters than negative ones.

Newspapers in the country reportedly continued to publish anti-Semitic cartoons, but fewer were published than in the previous year. In November 2006 the newspaper *Hamshahri* cosponsored a Holocaust-denial cartoon contest in which the paper solicited submissions from around the world and awarded a \$12,000 (approximately 112,000 rials) prize to a Moroccan cartoonist who drew a picture of an Israeli crane erecting a wall of concrete blocks around the Al-Aqsa Mosque in Jerusalem, Islam's third holiest site. The blocks bear sections of a photograph of the Nazi extermination camp at Auschwitz-Birkenau.

In December 2006 the government sponsored a conference entitled, "Review of the Holocaust: Global Vision." This conference was widely criticized as it sought to provide a forum for those who deny the existence or scope of the Holocaust. Speakers at the conference universally called for the elimination or delegitimization of the state of Israel and alleged that the Holocaust did not occur or was an exaggeration used by Jews for political and financial gains. The conference was followed by the establishment of the World Foundation for Holocaust Studies, run by a committee of Holocaust deniers.

In May 2006 a local magazine published photos of synagogues draped in U.S. and Israeli flags and claimed they were in Tehran and Shiraz when in fact they were outside of the country. Anti-Jewish and anti-Israel demonstrations followed in Shiraz. The Jewish MP protested in the Majles and was supported by the Speaker of the Majles, Gholam Ali Haddad Adel, who reprimanded the magazine.

In recent years the government made the education of Jewish children more difficult by limiting distribution of non-religious Hebrew texts and requiring several Jewish schools to remain open on Saturdays, the Jewish Sabbath. There were limits on the level to which Jews could rise professionally, particularly in government.

For a more detailed discussion, see the [2007 International Religious Freedom Report \(//2009-2017.state.gov/j/drl/rls/irf/2007/\)](https://2009-2017.state.gov/j/drl/rls/irf/2007/).

d. Freedom of Movement, Internally Displaced Persons, Protection of Refugees, and Stateless Persons

The government placed some restrictions on these rights. Citizens could travel within the country and change their place of residence without obtaining official permission. The government required exit permits for foreign travel for all citizens. Some citizens, particularly those whose skills were in short supply and who were educated at government expense, had to post bonds to obtain exit permits. The government restricted the foreign travel of certain individual members of religious minorities and several religious leaders, as well as some scientists in sensitive fields. The government also confiscated passports and placed travel bans on several journalists, academics, and activists.

For example, on January 25, authorities confiscated the passport of an Iranian-American. She faced regular interrogations, court hearings, and allegations of "propaganda against the establishment." On September 4, authorities returned her passport, and she left the country on September 18.

Hojjatoleslam Ezimi Qedimi remained under a five-year overseas travel ban following his release in August 2006 after serving five months in prison on a conviction of "propagandizing in favor of groups and organizations against the system."

Many dissidents practiced self-imposed exile in order to freely express their beliefs.

Citizens returning from abroad occasionally were subjected to searches and extensive questioning by government authorities for evidence of antigovernment activities abroad. Recorded and printed material, personal correspondence, and photographs were subject to confiscation.

Women must obtain the permission of their husband, father, or other male relative to obtain a passport. Married women must receive written permission from their husbands before leaving the country.

The government did not use forced external exile, and no information was available regarding whether the law prohibits such exile; however, the government used internal exile as a punishment.

The government offered amnesty to rank-and-file members of the Iranian terrorist organization, MEK, residing outside the country. Subsequently, the ICRC assisted with voluntarily repatriating at least 12 MEK affiliates in Iraq under MNF-I (Multinational Force Iraq) protective supervision during the year.

Protection of Refugees

The law provides means for granting asylum or refugee status to qualified applicants in accordance with the 1951 UN Convention relating to the Status of Refugees and its 1967 protocol. The government established a system for providing protection to refugees. UNHCR reportedly complained that government authorities pressured Afghan refugees to return to Afghanistan by suspending education and medical services and revoking residence permits. The government, facing a slow economy and citing national security concerns, accused many Afghans of drug and human trafficking and ethnic terrorist

violence. There were some reports of forced return of persons to a country where they feared persecution. There were reports of a small number of registered refugees deported among the large scale deportation of illegal Afghan migrants that commenced in April.

No information was available on government policy regarding temporary protection for individuals who may not qualify as refugees under the 1951 Convention or its 1967 protocol.

In April the government began a major effort to deport illegal Afghan migrants. Between April and June the government reportedly deported at least 100,000 Afghans. According to HRW, many of those deported received no warning that they were being deported, and many were separated from their families or were given very little time to collect belongings and wages. Other deportees claimed they were beaten, detained, or required to perform forced labor for several days before being deported. According to UNHCR, the deportations continued, although the scale decreased toward the end of the summer. Among the deportees were some vulnerable individuals and families who needed humanitarian assistance upon arrival in Afghanistan. By year's end, the government had reportedly deported over 363,000 Afghans during the year, a small number of whom were reportedly registered refugees. The government claimed that registered refugees who were deported will be permitted to return to Iran; however, no coordinated returns took place.

On December 1, UNHCR estimated that there were 915,000 registered Afghan refugees in the country. In March, Iran, Afghanistan, and the UNHCR extended the existing Tripartite Agreement until March 2008.

In 2005 the government imposed regulations specific to Afghan refugees that increased fines for employers of Afghans without work permits and made it difficult for Afghans to obtain mortgages, rent, own property, and open bank accounts. At year's end the regulations remained in effect.

There was no further information available on whether the government repatriated the imprisoned Afghans to whom the judiciary granted amnesty in 2005.

Although the government claimed to host more than 30,000 refugees of other nationalities during the year, including Tajiks, Uzbeks, Bosnians, Azeris, Iraqis, Eritreans, Somalis, Bangladeshis, and Pakistanis, it did not provide information about them, nor did it allow UNHCR or other organizations access to them. A Western NGO reported that few international humanitarian agencies operated in the country because the government restricted their operations and did not allow UNHCR to fund them.

Stateless Persons

According to the country's civil code, citizenship was derived from birth in the country or from the male parent. Citizenship could be acquired upon the fulfillment of the following criteria: persons were at least age 18, lived in the country for more than five years, were not military service escapees, and had not been convicted of a major crime in the country of origin or country of residence. It was likely that there were stateless persons in the country during the year. The Iraqi and Iranian governments continued to dispute Iraqi refugees' citizenship, rendering many of them stateless. Further information about the numbers of individuals or the reason behind their statelessness was unknown.

During the past few years, a large percentage of Iraqi refugees were voluntarily repatriated. UNHCR estimated that in 2006 there were approximately 54,000 Iraqi refugees, the majority Iraqi Kurds but also some Shi'a Arabs, in the country.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

Elections and Political Participation

The government severely restricted citizens' right to change their government through free and fair elections. The supreme leader, the recognized head of state, is elected by the Assembly of Experts and can only be removed by a vote of this assembly. The assembly was composed of 86 members and was restricted to clerics, who served an eight-year term and

were chosen by popular vote from a list approved by the Guardian Council. There was no separation of state and religion, and clerical influence pervades the government.

According to the constitution, a presidential candidate must be elected from among religious and political personalities ("rejal," which is interpreted by the Guardian Council to mean men only), of Iranian origin, Shi'a Muslim faith, and who believe in the Islamic Republic's system and principles. The Guardian Council was composed of 12 members, six clerics appointed by the supreme leader and six religious jurists appointed by the head of the judiciary. The Guardian Council reviewed all laws for consistency with Islamic law and the constitution, and had "approbatory supervision" to screen candidates for election. The Guardian Council rejected all candidates it deemed unqualified and only accepted candidates who supported a theocratic state. The supreme leader also approved the candidacy of presidential candidates, with the exception of an incumbent president. Prior to the 2004 parliamentary elections, the Guardian Council vetoed legislation that would have required it to reinstate disqualified candidates unless the council legally documented their exclusion. Regularly scheduled elections were held for the presidency, the Majles, and the Assembly of Experts, as well as municipal councils.

In December 2006 there were elections for the Assembly of Experts, municipal councils, and Majles by-elections. These elections were neither free nor fair, as the Guardian Council disqualified candidates based on ideological background. The parliamentary election commission and Guardian Council disqualified hundreds of potential candidates, largely reformists. Only 144 of the 492 prospective candidates were deemed eligible to run in the December 2006 Assembly of Experts elections. In the Assembly of Experts elections, Expediency Council chair Hojatolislam Ali Akbar Hashemi-Rafsanjani, a pragmatic conservative, received the most votes in the Tehran constituency by a significant margin. Reports indicated that 100 candidates withdrew their applications, and all female candidates failed the written exam on religious interpretation ("ijtihad") and were disqualified.

The fairness of the 2005 presidential election was undermined both before and during the polls. The Guardian Council initially approved the candidacies of only six of the 1,014 persons who registered and excluded all 89 female candidates as well as anyone critical of the leadership, including former cabinet ministers. During the polling, many candidates and the interior ministry complained of irregularities, including interference by Basij forces. There were no international election observers. After the second round of voting, the supreme leader denied the allegations of Basij involvement, and the Guardian Council validated the results. Domestic press reported that 104 cases of alleged violations were under review and suspects were detained in 26 cases; however, no further action was taken. According to official statistics, Mahmoud Ahmadi-Nejad won the run-off race with 61 percent of the votes.

In 2004 elections that were widely perceived as neither free nor fair were held for the 290-seat Majles. The Guardian Council barred over a third of the more than 8,000 prospective candidates, mostly reformists, including over 85 sitting Majles members seeking re-election.

The constitution allows for the formation of political parties. There were more than 100 registered political organizations, but these groups tended to be small entities, often focused around an individual and did not have nationwide membership. Political groupings significantly reorganized after the June 2005 presidential elections, with new groups forming and existing entities changing leadership. Conservative groups continued to splinter during the year; moderate conservatives appeared increasingly separated from fundamentalist conservatives. In the December 2006 municipal elections, reform groups created a single electoral list for the Tehran municipal council elections.

There were reports that the government placed significant restrictions on election campaigning, reportedly forbidding candidates to post banners, hold rallies, or hand out flyers until only days before the elections. The interior ministry banned newspapers from reporting on parties that were not registered with the ministry.

There were no female cabinet ministers, although one of the nine vice presidents was a woman, and several women held high-level positions. There were 13 women serving in the Majles during the year. Five Majles seats were reserved for the recognized religious minorities. Other ethnic minorities in the Majles included Arabs and Kurds. There were no non-Muslims in the cabinet or on the Supreme Court.

Government Corruption and Transparency

The Worldwide Governance Indicators of the World Bank reflect that corruption was a serious problem. Widespread corruption existed in all three branches of government, including the judiciary and the "bonyads" (tax-exempt foundations designed for charitable activity that control consortia of substantial companies).

In August 2006 the Majles passed a law requiring all state officials, including cabinet ministers, and members of the Guardian Council, Expediency Council, and Assembly of Experts, to submit annual financial statements to the state inspectorate. There was no information available regarding whether these government officials obeyed the law.

There was no information during the year regarding further government action on corruption cases from previous years that Judiciary Chief Shahrudi previously claimed the judiciary was pursuing.

There were no laws providing for public access to government information.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

The government continued to restrict the work of local human rights groups. The government denied the universality of human rights and stated that human rights issues should be viewed in the context of a country's "culture and beliefs."

During the year, the local NGO the Society for the Defense of the Rights of Prisoners maintained a Web site with information addressing human rights issues and in June 2006 published a report about prisons in the country. There was no indication during the year that Judiciary Chief Shahrudi responded to the group's appeal for attention to cases of political prisoners.

Various professional groups representing writers, journalists, photographers, and others attempted to monitor government restrictions in their respective fields, as well as harassment and intimidation against individual members of their professions. However, the government severely curtailed these groups' ability to meet, organize, and effect change.

Domestic NGOs worked in areas such as health and population, women's rights, development, youth, environmental protection, human rights, and sustainable development. Some reports estimated that a few thousand local NGOs operated during the year. However, in 2005 a more restrictive environment accompanied the new presidential administration, including pressure on domestic NGOs not to accept foreign grants. In March the revolutionary court reportedly shut down the offices of three prominent civil society and women's rights NGOs, the Iran Civil Society Organizations Training and Research Center, the Raahi Legal Center, and the NGOs Training Center. During the year activists affiliated with the organizations, Sohrab Razzaghi, Shadi Sadr, and Mahboubeh Abbasgholizadeh were detained and faced charges related to their NGO activities. Two Iranian-American scholars were jailed because of their work for foreign NGOs.

In November 2006 the European Union (EU) Parliament, which had a human rights dialogue with the government from 2002-2004, called on the country to restart the dialogue, but the government did not respond. On May 25, the EU Presidency declared itself "deeply concerned" about the deteriorating human rights situation, noting that it was "particularly troubled about the recent wave of arrests of civil society and women's rights activists."

International human rights NGOs were not permitted to establish offices in or conduct regular investigative visits to the country. The last visit by an international human rights NGO was AI's visit in 2004 as part of the EU's human rights dialogue.

The ICRC and the UNHCR both operated in the country with some restrictions. In June 2006 the government allowed the UNSR on Adequate Housing to visit.

The December 18 UNGA resolution on the country's human rights record expressed "very serious concern" at a number of ongoing abuses, including confirmed instances of torture, executions by stoning, and sentences of execution by stoning. The resolution called on the government to heed the recommendations of the past four resolutions and permit special procedures to visit the country to assess how the government is addressing their recommendations. No such visit has taken place under these recommended special procedures since July 2005.

During the year, the supreme leader established a human rights committee, chaired by the judiciary chief, with members including the ministers of intelligence, interior, foreign affairs, justice, and culture, as well as other judicial and military officials. The committee was not considered effective. In one of his first public statements as secretary of the committee, Mohammad Javad Larijani defended death by stoning as a punishment for adultery, but stated that the punishment is nonetheless rarely carried out in the country.

The Center for the Defense of Human Rights, founded by Nobel Peace Prize Laureate Shirin Ebadi, remained banned.

In 2006 hundreds of NGOs were left without legal status after they were instructed to file for new permits. Those NGOs that did not file the request were vulnerable to accusations of operating without a permit, and many of the applications that were filed were reportedly left pending indefinitely. In either instance they could be accused of operating without a permit. According to domestic press reports, the interior ministry stated on September 4 that 219 permits for NGOs had been authorized since 2005. The government granted 22 in 2007, 145 in 2006, and 52 in 2005. The interior ministry stated it processed 600 applications and that 300 were still pending.

Section 5 Discrimination, Societal Abuses, and Trafficking in Persons

In general the government did not discriminate on the basis of race, disability, or social status; however, it did discriminate on the basis of religion, gender, and ethnicity. It consistently denied minorities their constitutional right to study and use their language in schools, particularly Kurds, Azeris, and Ahvazi Arabs. The poorest areas of the country were those inhabited by ethnic minorities, including the Baluchis in Sistan va Baluchestan Province and Arabs in the southwest. Much of the damage suffered by the citizens of Khuzestan Province during the eight-year war with Iraq has not been repaired; consequently, the quality of life of the largely Arab local population was poor.

Women

The constitution says all citizens, both men and women, equally enjoy protection of the law and all human, political, economic, social, and cultural rights, in conformity with Islamic rights.

Nonetheless, provisions in the Islamic civil and penal codes, in particular those sections dealing with family and property law, discriminate against women. Shortly after the 1979 revolution, the government repealed the 1967 Family Protection Law that provided women with increased rights in the home and workplace and replaced it with a legal system based largely on Shari'a practices. In 1998 the Majles passed legislation that mandated segregation of the sexes in the provision of medical care. In 2003 the Council of Guardians rejected a bill that would require the country to adopt a UN convention ending discrimination against women.

In April the revolutionary courts sentenced Parvin Ardalan, Nushin Ahmadi Khorasani, Sussan Tahmasebi, Shahla Entessari, and Fariba Davoudi Mohajer to between two and four years in prison for "acting against national security" for organizing a June 2006 women's rights rally. The courts suspended some portions of some sentences.

The government continued to arrest and detain members of the "One Million Signatures Campaign Demanding Changes to Discriminatory Laws," which activists launched in 2006 to promote women's rights. On July 11, security forces detained Amir Yaghoub Ali for collecting signatures for the campaign in Tehran's Andishe Park. Security forces detained him in section 209 of Evin Prison. On August 8, authorities released him on bail after four weeks in custody. It was not known what, if any, charges were brought against him.

On July 2, authorities sentenced women's rights activist Delaram Ali to 20 lashes and two years and 10 months in prison for her participation in a June 2006 women's rights rally. The judge charged her with "acting against national security" and "propaganda against the system." Following international protests, on November 4, the judiciary reduced her sentence to 10 lashes and two and a half years in prison and on November 10, authorities temporarily suspended her sentence.

On August 12, authorities sentenced Nasim Sarbandi and Fatemeh Dehdashti to six months in prison and two-year suspended sentences reportedly for collecting signatures for the One Million Signatures campaign at a Tehran train station.

On October 9, authorities arrested Ronak Safarzadeh in the city of Sanandaj for collecting signatures for the One Million Signatures campaign.

On November 4, student Hana Abdi was also arrested for collecting signatures for the One Million Signatures campaign. No known charges were filed, and both Abdi and Safarzadeh remained in prison at year's end.

On November 18, authorities arrested women's rights activist and journalist Maryam Hosseinkhah. She was accused of "propaganda against the system." Hosseinkhah was one of the publishers of Zanestan Web site, which was shut down on November 17. She reportedly remained in detention in Evin Prison, unable to meet the \$107,000 (1 billion rials) bail. Authorities reportedly denied her lawyer access to the details of her case.

On December 1, authorities arrested women's rights activist Jelveh Javaheri following an interrogation at the security branch of the revolutionary court. Authorities reportedly charged her with "inciting public opinion," "propaganda against the system," and "publishing false information."

The government Center for Women and Family continued to publish reports on feminism with a negative slant and limited the debate on women's issues to only those related to the home.

Although spousal abuse and violence against women occurred, reliable statistics were not available. Abuse in the family was considered a private matter and seldom discussed publicly, although there were some efforts to change this attitude. Rape is illegal and subject to strict penalties, but it remained a problem. There was no further information on the activity of the Center for Women's Participation committee, based in the health ministry, to combat violence against women.

According to a 2004 report on the country from the Independent Researchers on Women's Issues, there were no reliable statistics on honor killings, but there was evidence of "rampant" honor killings in the western and southwestern provinces, in particular Khuzestan and Elam. The punishment for perpetrators was often a short prison sentence.

Prostitution is illegal, but "sigheh," or temporary marriage, is legal. Accurate information regarding the extent of prostitution was not widely available. Press reports described prostitution as a widespread problem, with a media estimate of 300,000 women working as prostitutes. The problem appeared aggravated by difficult economic conditions and rising numbers of drug users and runaway children.

Although a male can marry at age 15 without parental consent, the 1991 civil law states that a virgin female needs the consent of her father or grandfather to wed, or the court's permission, even if she is older than 18. The country's Islamic law permits a man to have up to four wives and an unlimited number of temporary partnerships (sigheh), based on a Shi'a custom in which a woman may become the wife of a Muslim male after a simple religious ceremony and a civil contract outlining the union's conditions. Temporary marriages may last for any length of time and are used sometimes by prostitutes. Such wives were not granted rights associated with traditional marriage.

Women have the right to divorce if the husband signed a contract granting that right or if he cannot provide for his family, is a drug addict, insane, or impotent. However, a husband was not required to cite a reason for divorcing his wife.

A widely used model marriage contract limited privileges accorded to men by custom, and traditional interpretations of Islamic law recognized a divorced woman's right to a share in the property that couples acquire during their marriage and to increased alimony. Women who remarry were forced to give the child's father custody of children from earlier marriages. However, the law granted custody of minor children to the mother in certain divorce cases in which the father was proven unfit to care for the child. The law provides women preference in custody for children up to seven years of age; thereafter, the father is entitled to custody. After the age of seven, in disputed cases custody of the child was to be determined by the court.

The penal code includes provisions for stoning persons convicted of adultery, although judges were instructed in 2002 to cease imposing such sentences. During the year, authorities carried out the sentence against one man, Jafar Kiani. Rights groups reported that at least nine people—mostly women—remained sentenced to death by stoning in the country. In addition a man could escape punishment for killing a wife caught in the act of adultery if he was certain she was a consenting partner; the same rule does not apply for women. Women may also receive disproportionate punishment for crimes, including death sentences. In July human rights groups and activists called on the government to end the practice of stoning.

The testimony of two women equates with that of one man. The blood money paid to the family of a female crime victim was half the sum paid for a man.

Women had access to primary and advanced education. Reportedly over 60 percent of university students were women; however, social and legal constraints limited their professional opportunities. Women were represented in many fields of the work force, including the legislature and municipal councils, police, and firefighters. However, their unemployment rate reportedly was significantly higher than for men, and they represented only 11 percent of the workforce. Women reportedly occupied 1.2 percent of higher management positions and 5.2 percent of managerial positions.

Women cannot serve as president or as certain types of judges (women can be consultant and research judges without the power to impose sentences). The constitution requires that Assembly of Experts candidates have a certain religious qualification. Citing this requirement, some religious leaders gave qualified support for the candidacy of women in the Assembly of Experts elections. In December 2006 two women took the religious qualification exam, but neither passed.

Women owned property and businesses in their name, and they obtained credit at a bank. The law provides maternity, child care, and pension benefits. The number of women's NGOs has reportedly increased from approximately 130 to 450 in the past decade.

The government enforced gender segregation in most public spaces and prohibited women from mixing openly with unmarried men or men not related to them. Women must ride in a reserved section on public buses and enter public buildings, universities, and airports through separate entrances.

The penal code provides that if a woman appears in public without the appropriate Islamic covering (hijab), she can be sentenced to lashings and/or fined. However, absent a clear legal definition of appropriate hijab or the punishment, women were at the mercy of the disciplinary forces or the judge. Pictures of uncovered or immodestly dressed women in the press or in films were often digitally altered.

Children

There was little current information available to assess government efforts to promote the welfare of children. Except in isolated areas of the country, children had free education through the 12th grade (compulsory to age 11) and the right to some form of health care. Health care generally was regarded as affordable and comprehensive with competent physicians. Courts issued death sentences for crimes committed by minors.

Only a few cities had a youth prison, and minors were sometimes held with adult violent offenders. According to UN Integrated Regional Information Networks (IRIN) there were 300 boys and 40 girls at the Tehran youth prison, with the average age of 14, but some were as young as age six. Children whose parents could not afford court fees were reportedly

imprisoned for petty offenses including shoplifting, wearing make-up, or mixing with the opposite sex.

There was little information available to reflect how the government dealt with child abuse, including child labor. Abuse was largely regarded as a private, family matter. According to IRIN, child sexual abuse was rarely reported. Nonetheless, according to the government's 2005 report on the rights of the child, the health ministry developed over the past few years an action plan with UNICEF to fight child abuse, including training health ministry officials on the rights of the child. A 2005 UNICEF conference in Tehran addressed problems relating to child sexual abuse, including identifying, investigating, and protecting victims.

According to some reports, it was not unusual in rural areas for parents to have their children marry before they become teenagers, often for economic reasons. The law requires court approval for the marriage of girls younger than 13 and boys younger than 15.

In 2006 the government reduced the school fees charged for Afghan students, according to a Western NGO. However, there were reportedly significant numbers of children, particularly Afghan but also Iranian, working as street vendors in Tehran and other cities and not attending school. According to government sources, three million children were prevented from obtaining an education because their families forced them to work. Unofficial sources claimed the figure was closer to five million. In 2005 government representatives told the UN Committee on the Rights of the Child that there were fewer than 60,000 street children in the country. Tehran reportedly opened several shelters for street children during the year. The government's 2005 report on the rights of the child claimed 7,000 street children had been resettled.

Trafficking in Persons

The law prohibits human trafficking. However, according to foreign observers, women and girls were trafficked from the country to Pakistan, Turkey, Europe, and the Gulf States for sexual exploitation. Boys from Bangladesh, Pakistan, and Afghanistan were trafficked through the country to Gulf States. Afghan women and girls were trafficked to the country for sexual exploitation and forced marriages. Internal trafficking for sexual exploitation and forced labor also occurred. The government did not fully comply with the minimum standards for the elimination of trafficking.

In September, according to domestic news, police disbanded an international smuggling network based in Tehran, but it was unclear how many, if any, of these were actual trafficking offenses. The group smuggled women and girls from Central Asia through Iran to the Gulf States. Police reportedly arrested 25 people for involvement in the network. However, there were also reports that the government arrested and punished several trafficking victims on charges of prostitution or adultery.

Persons with Disabilities

Although in 2004 the Majles passed a law on the rights of disabled persons, it was not known whether implementing legislation followed. There was no information available regarding whether the government legislated or otherwise mandated accessibility for persons with disabilities or whether discrimination against persons with disabilities was prohibited. No information was available on which government agencies were responsible for protecting the rights of persons with disabilities.

National/Racial/Ethnic Minorities

The constitution grants equal rights to all ethnic minorities and allows for minority languages to be used in the media and schools. State broadcasting had weekly programs in various ethnic languages. In practice, however, the government did not always permit minority groups, such as Azeris, Kurds, and Ahvazi Arabs, to use their respective languages in schools. Few minority groups called for separatism but instead complained of political and economic discrimination.

In 2005 the UNSR for Adequate Housing reported that ethnic and religious minorities, nomadic groups, and women faced discrimination in housing and land rights, compounded by the rising cost of housing. The Ahvazi representative in the previous Majles wrote a letter to then-president Khatami, complaining that Arab land was being bought at very low prices or even confiscated. He also said Arab political parties were not allowed to compete in elections, and Arabic newspapers and magazines were banned.

Interior Minister Mustafa Purmohammadi ranked ethnic divisions as one of the biggest problems his ministry had to address. The government blamed foreign entities, including a number of Western countries, for instigating some of the ethnic unrest. Other groups claimed the government staged the bombs in Khuzestan during 2005 and 2006 as a pretext for repression.

In March 2006 Kurds clashed with police, reportedly resulting in three deaths and over 250 arrests. There were also clashes in June 2005, and there were strikes and demonstrations in July and August 2005 following the killing of a Kurdish activist by security forces. According to HRW and other sources, security forces killed at least 17 persons and wounded and arrested large numbers of others.

Foreign representatives of the Ahvazi Arabs of Khuzestan claimed their community of two to four million in the southwest section of the country suffered from persecution and discrimination, including the lack of freedom to study and speak Arabic. In early 2006 there were several bombings in Khuzestan. The government blamed the violence on outside forces and foreign governments, although the revolutionary court later announced death sentences for at least 11 ethnic Arabs in connection with the bombings. After the first bombing in January 2006, the Ahvazi Arab Revival Party, an irredentist group, criticized the government for blaming its problems on foreign governments and warned that there would be more violence if the government did not change its policies regarding ethnic Arabs.

Provincial authorities sentenced 19 Ahvazi Arabs to death in connection with the October 2005 and January and February 2006 bombings. Human rights groups have accused the government of torturing prisoners to extract confessions and unfair trial practices; they called on the government to retry at least 10 of the accused bombers.

Ahvazi and human rights groups alleged torture and ill-treatment of Ahvazi Arab activists, including detention of the spouses and young children of activists.

In 2005 protests in Ahvaz followed the publication of a letter—-termed a forgery by the government—-allegedly written in 1999 by an advisor to then-president Khatami--that referred to government policies to reduce the percentage of ethnic Arabs in Khuzestan.

Ethnic Azeris composed approximately one-quarter of the country's population, were well integrated into the government and society and included the supreme leader. However, Azeris complained of ethnic and linguistic discrimination, including banning the Azeri language in schools, harassing Azeri activists or organizers, and changing Azeri geographic names. The government traditionally viewed Azeri nationalism as threatening, particularly since the dissolution of the Soviet Union and the creation of an independent Azerbaijan. Azeri groups also claimed that there were a number of Azeri political prisoners jailed for advocating cultural and language rights for Iranian Azerbaijanis. The government has charged several of them with "revolting against the Islamic state."

In May 2006 there were large-scale riots in the Azeri majority regions of the northwest following publication of a newspaper cartoon considered insulting to Azeris. The cartoon depicted a cockroach speaking in the Azeri language. Police forcibly contained the protests, and police officials reported that four persons were killed and several protesters were detained. Authorities blamed foreign governments for inciting unrest.

According to AI, on May 14, authorities beat and detained Azeri language-rights activist Amir Abbas Banayi Kazimi in Tabriz. His family claimed he was subject to torture.

Other Societal Abuses and Discrimination

In 2004 the judiciary formed the Special Protection Division, a volunteer unit that monitored and reported moral crimes. The law prohibited and punished homosexuality; sodomy between consenting adults was a capital crime. The punishment of a non-Muslim homosexual was harsher if the homosexual's partner was Muslim. At a speech at Columbia University in September, the president publicly denied the existence of homosexuals in the country.

According to health ministry statistics announced in October 2006, there were more than 13,000 registered HIV-positive persons in the country, but unofficial estimates were much higher; most were men. Transmission was primarily through shared needles by drug users, and a study showed shared injection inside prison to be a particular risk factor. There was a free anonymous testing clinic in Tehran, and government-sponsored low-cost or free methadone treatment for heroin addicts, including in prisons. The government also started distributing clean needles in some prisons. The government supported programs for AIDS awareness and did not interfere with private HIV-related NGOs. Contraceptives, including free condoms, were available at health centers as well as in pharmacies. Nevertheless, persons infected with HIV reportedly faced discrimination in schools and workplaces.

Section 6 Worker Rights

a. The Right of Association

The law provides workers the right to establish unions; however, in practice the government did not permit independent unions. A national organization known as Workers' House was the sole authorized national labor organization. It served primarily as a conduit for government control over workers. The leadership of Workers' House coordinated activities with Islamic labor councils, which consisted of representatives of workers and a representative of management in industrial, agricultural, and service organizations consisting of more than 35 employees. The Islamic labor councils also functioned as instruments of government control and frequently blocked layoffs and dismissals.

The law allows employers and employees to establish guilds. The guilds issued vocational licenses and helped members find jobs. Instances of late or partial pay for government workers reportedly were common.

In 2005 workers appointed a committee to lobby for the right to form labor associations. The committee issued a statement signed by 5,000 workers that it did not recognize agreements signed between the government and the International Labor Organization (ILO) because workers had no independent representation at discussions. Workers criticized official unions for being too close to the government.

On April 7, security forces arrested 45 members of the Hamedan Teachers' Association. The organization was reportedly banned and judiciary officials said the teachers were arrested because of their continued affiliation with a banned organization.

On April 9, labor activist Mahmoud Salehi, former head of the Saqqez Bakery Workers' Union, was detained by security forces and subsequently sentenced to one year in prison and three years' suspended sentence. He remained in prison and was reportedly in poor health. On December 11, he was hospitalized for complications related to his being denied proper treatment for chronic kidney disease. Salehi's earlier sentence in 2005 was overturned on appeal. A November 2006 report indicated that Salehi was sentenced to four years' imprisonment for committing crimes against the country's internal security but was not detained until April. Fellow labor activist Jalal Hosseini was reportedly sentenced to two years' imprisonment on similar charges in November 2006; however, on April 10, he was reportedly not in prison.

On July 10, unidentified men arrested labor leader Mansur Osanloo and detained him in Evin Prison. He was also repeatedly arrested in 2006. Osanloo, the head of the Syndicate of Bus Drivers of the Tehran and Suburbs Bus Company (Sherkat-e-Vahed), had been targeted by the government because of his calls for labor rights. Osanloo's health has suffered in prison, and on October 21, he underwent eye surgery to prevent blindness in his left eye. At year's end, he remained in prison.

On August 9, authorities arrested Ebrahim Madadi and four others for protesting the arrest of Osanloo. On December 16, Madadi was released from jail following an appeals court ruling that cleared him of the charge of acting against national security.

b. The Right to Organize and Bargain Collectively

Although the labor code was amended in 2003 to permit workers to form and join "trade unions" without prior permission if registration regulations are observed, workers did not have the right to organize independently and negotiate collective bargaining agreements.

Workshops of 10 employees or fewer were exempt from labor legislation. According to the International Trade Union Confederation (ITUC), more than 400,000 of the country's 450,000 workshops were exempt circa 2003.

The law prohibits public sector strikes, and the government did not tolerate any strike deemed contrary to its economic and labor policies; however, strikes occurred. There were no mechanisms to protect worker rights in the public sector, such as mediation or arbitration.

According to the ITUC, labor legislation did not apply in export processing zones.

c. Prohibition of Forced or Compulsory Labor

The law permits the government to require any person not working to take suitable employment; however, this requirement did not appear to be enforced regularly. The law prohibits forced and bonded labor by children; however, this law was not enforced adequately, and such labor by children was a serious problem.

d. Prohibition of Child Labor and Minimum Age for Employment

The law prohibits forced and bonded labor by children; however, child labor appeared to be a serious problem. The law prohibits employment of minors less than 15 years of age and places restrictions on the employment of minors under age 18; however, the government did not adequately enforce laws pertaining to child labor. The law permits children to work in agriculture, domestic service, and some small businesses but prohibits employment of women and minors in hard labor or night work. There was no information regarding enforcement of these regulations.

e. Acceptable Conditions of Work

The law empowers the Supreme Labor Council to establish annual minimum wage levels for each industrial sector and region. In 2006 President Ahmadi-Nejad increased the minimum wage levels, but workers continued to claim it was too low. There was no information regarding mechanisms to set wages, and it was not known if minimum wages were enforced. The law stipulates that the minimum wage should meet the living expenses of a family and take inflation into account. However, many middle-class citizens had to work two or three jobs to support their families.

The law establishes a maximum six-day, 48-hour workweek, with a weekly rest day, normally Fridays, and at least 12 days of paid annual leave and several paid public holidays.

According to the law, a safety council, chaired by the labor minister or his representative, should protect workplace safety and health. Labor organizations outside the country have alleged that hazardous work environments were common in the country and resulted in thousands of worker deaths annually. The quality of safety regulation enforcement was unknown, and it was unknown whether workers could remove themselves from hazardous situations without risking the loss of employment.

There was anecdotal evidence suggesting some government employees and students voted in the 2005 presidential election and the December 2006 elections to obtain the stamp proving they had voted. Without this stamp, they feared they would have employment or enrollment problems.

* The United States does not have an embassy in Iran. This report draws heavily on non-U.S. Government sources.

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